

authority to agree to an arbitration provision within an admission agreement...” (*Gordon, supra*, 70 Cal.App.5th at 1030.)

Again, Plaintiff did not execute a health care power of attorney. In fact, the General Power of Attorney Plaintiff signed specifically says it does not authorize anyone to make medical or other health care decisions for Plaintiff. In *Gordon*, the operative durable power of attorney advised it did not authorize anyone to make medical or health care decisions on the principal’s behalf, but it did specifically empower the agent to “demand, arbitrate, and pursue litigation on [principal’s] behalf concerning all rights and benefits to which [principal] may be entitled...” (*Gordon, supra*, 70 Cal.App.5th at 1022-1023.) There is no such designation in the power of attorney form at play in the instant matter.

The only powers Plaintiff delegated to Selisker were the powers over goods and services transactions, banking transactions, insurance transactions, and personal relationships and affairs. Defendant has not provided any authority that demonstrates Selisker had the authority within these four specific grants of power to bind Plaintiff to an arbitration agreement in connection with her residence at Defendant’s facility. The only authority Defendant cites in support of its arguments – *Gordon, Garrison*, and *Hogan* – are factually distinguishable and do not support granting the instant motion.

Since the executed General Power of Attorney did not grant Selisker the power to either make health care decisions for Plaintiff or make decisions relating to “claims and litigation,” Selisker did not have authority to sign the arbitration agreement on Plaintiff’s behalf. As a result, there is no arbitration agreement between the parties.

The parties also discuss the delegation clause in the arbitration agreement itself. Defendant argues if there is any dispute about whether the agreement is enforceable, this Court must still order the parties to arbitration so the arbitrator can decide the issue of enforceability. However, since there is no arbitration agreement between the parties, the court need not consider the delegation clause or its effect.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404340	LAFAYETTE FEDERAL CREDIT UNION VS LIYANAPATABENDY	MOTION TO ENTER JUDGMENT PURSUANT TO CCP § 664.6

Tentative Ruling:

DENIED: No showing the Court reserved jurisdiction to enforce settlement pursuant to CCP 664.6..

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406306	SPARKS VS CITY OF MORENO VALLEY	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

Moving party: Defendant City of Moreno Valley
Responding party: Plaintiff Rosalyn Sparks

MOTION DENIED

Proof of service is proper

This is an action for personal injury. Plaintiff Rosalyn Sparks (“Plaintiff”) alleges that her walker caught on an uneven edge on Defendant City of Moreno Valley’s (“Defendant” or “City”) property that caused her to fall on 12/17/23. The operative complaint, filed 11/8/24, asserts a single cause of action for premises liability against the City and other public entities, pursuant to Govt. Code §§ 835 and 815.2. Plaintiff alleges that Defendant negligently maintained the premises at or near Cottonwood Avenue and Elsworth Street by allowing an “uneven, broken, deteriorating and/or raised portion of the pavement and/or sidewalk” to exist, “be left in disrepair,” and failed to “barricade the area and/or to warn” of the danger. Trial is set for 7/24/26.

Defendant now moves for summary judgment, arguing that there is a “fatal factual variance” between Plaintiff’s government claim and her subsequent deposition testimony. Defendant asserts that both the claim and the complaint described the dangerous condition as an “uneven, broken, raised and/or deteriorating portion of the pavement and/or roadway.” It asserts that a photograph attached to the claim form shows the broken asphalt roadway. However, in her 7/1/25 deposition, Plaintiff testified that she did not fall on the roadway, but rather where a dirt path transitioned to an adjacent sidewalk. Defendant argues that this change in the description of the location deprived it of the opportunity to investigate. It also argues that the inconsistent description negates the causation element of Plaintiff’s claim, and that the dangerous condition alleged in the claim was *not* the cause of Plaintiff’s injuries.

In opposition, Plaintiff argues that she consistently identified her fall location as the corner of Cottonwood Avenue and Elsworth Street. She also asserts that the photograph attached to her claim shows the exact location of the fall, which Defendant later marked as an exhibit in her deposition and had sufficient notice. She argues that her claim substantially complied with the Government Claims Act. She also argues that Defendant waived any challenge to the sufficiency of the claim by failing to serve a notice of insufficiency. (Govt. Code § 910.8.) She contends that whether Defendant was prejudiced is a triable issue of fact.

In reply, Defendant argues that Plaintiff’s compliance with the Claims Act does not negate her inability to prove a triable issue of fact. Defendant also distinguishes Plaintiff’s cases cited. It otherwise repeats its arguments in the moving papers.

A motion for summary judgment shall be granted when no triable issue of material fact exists, or the issue is one of law and the action can be terminated in favor of the moving party without trial. (Code Civ. Proc., § 437c; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Although summary judgment is no longer considered a “disfavored” procedure, the rule continues that the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832.)

A defendant moving for summary judgment bears the initial burden of production. (Code Civ. Proc. § 437c(p)(2).) The defendant must present evidence sufficient to show either that one or more elements of the plaintiff’s cause of action cannot be established or that a complete defense exists. (*Ibid.*) It has its initial burden regardless of whether the opposing party files counter-declarations. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Where a defendant fails to meet its burden, the motion must be denied; plaintiff need not make any showing at all. (*Id.*)

Once the defendant has met its burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense thereto. (Code Civ. Proc. § 437c(p)(2).) To satisfy this burden, the plaintiff cannot rely upon the allegations or denials in its pleadings but must “set forth the specific facts showing that a triable issue of material fact exists.” (*Ibid.*) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, *disapproved on another ground in Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238.)

Although summary judgment is designed to “pierce” the pleadings, “[t]he pleadings play a key role in a summary judgment motion.” (*Hutton v. Fidelity Nat’l Title Co.* (2013) 213 Cal.App.4th 486, 493.) A defendant moving for summary judgment needs only negate the theories of liability *as alleged in the complaint*; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings. (*Id.*) In other words, the pleadings frame the issues on a summary judgment motion.

Here, Plaintiff’s complaint alleges a single theory of liability: that she walked “with the assistance of her walker,” and fell when her “walker went over an uneven and/or broken and/or deteriorating and/or raised portion of the pavement and/or roadway.” (Compl., p. 6). Defendant’s motion is predicated on the sole argument that a variance exists between the description of the dangerous condition in Plaintiff’s government claim and her deposition testimony.

Under the Government Claims Act (the “Act”), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity (“government claim”) which must be acted upon or deemed rejected by the public entity. (Govt. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to adequately investigate claims and settle, if appropriate, without the expense of litigation.

(*Ibid.*) It is required irrespective of the public entity's actual knowledge of the circumstances. (*Ibid.*)

The claim must contain the following information: (1) the name and address of the claimant; (2) the address which the person presenting the claims seeks the notices to be sent; (3) the date, place and other circumstances of the occurrence or transaction gave rise to the claim asserted; (4) a general description of the indebtedness, obligation, injury, damage or loss; (5) the names of public employees causing the injury, damage or loss; and (6) the amount claimed. (*Id.* at § 910.)

For negligence, the elements are: (1) legal duty owed to plaintiffs to use due care; (2) breach of duty; (3) causation; and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.) Premises liability is a form of negligence. Accordingly, the elements of a claim for injuries suffered by an invitee due to a dangerous condition on the premises (whether natural or artificial) are duty, breach, causation, and damages. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.)

Defendant argues that, since Plaintiff testified that she fell at a different physical location (the dirt path) than that alleged in the complaint and the government claim form (the pavement/roadway), Plaintiff cannot establish the element of causation. Defendant's evidence makes a prima facie showing that the specific dangerous condition identified in the government claim was not the proximate cause of Plaintiff's injury. To that end, Defendant has met its initial burden to produce evidence to negate the causation element of Plaintiff's claim. The burden of production shifts to Plaintiff to demonstrate the existence of a triable issue of material fact.

Here, Plaintiff has raised different arguments that create triable issues of fact.

First, Plaintiff argues that she substantially complied with the claims statute. "Under the doctrine of substantial compliance the court may conclude a claim is valid if it substantially complies with all of the statutory requirements for valid claim even though it is technically deficient in one or more particulars...The doctrine is based on the premise that substantial compliance fulfills the purpose of the claims statutes, namely, to give the public entity notice of the nature of the claim so that it may investigate and settle those having merit without litigation." (*Santee v. Santa Clara County Office of Education* (1990) 220 Cal.App.3d 702, 713 [citation omitted].) As stated by the California Supreme Court:

The purpose of these statutes is "to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation." [Citations.] Consequently, a claim need not contain the detail and specificity required of a pleading, but need only "fairly describe what [the] entity is alleged to have done." [Citations.] As the purpose of the claim is to give the government entity notice sufficient for it to investigate and evaluate the claim, not to eliminate meritorious actions [citations], the claims statute "should not be applied to snare the unwary where its purpose has been satisfied" [Citation].

(*Stockett v. Association of California Water Agencies Joint Powers Insurance Authority* (2004) 34 Cal.4th 441, 446.) A complaint is not fatally defective if the facts underlying it have been “fairly reflected” in the government claim. (*Id.* at 447.) A complaint that “merely elaborates or adds further detail to a claim but is predicated on the same fundamental actions or failures to act by the defendants,” is permissible. (*Id.*) “Only where there has been a ‘complete shift in allegations, usually involving an effort to premise civil liability on acts or omissions committed at different times or by different persons than those described in the claim,’ have courts generally found the complaint barred.” (*Id.*)

Here, it is undisputed that Plaintiff has consistently identified the same date, 12/17/23 (Undisputed Material Fact (“UF”) #1), and the same intersection (Cottonwood & Elsworth) for her fall. (Plaintiff’s UF #5.) Her claim describes an “uneven, broken, raised and/or deteriorating portion of the pavement and/or roadway.” (UF #4.) Her deposition testimony describes the cause of her fall as her walker wheel catching an edge “in between the dirt and the concrete.” (Plaintiff’s UF #7.) She also testified that the edge was “elevated,” “uneven,” and “unlevel,” with a “difference in height” between the dirt and the concrete. (*Id.*, #8.) The description of the defect as “uneven” and “raised” is consistent throughout. Whether Plaintiff’s testimony is a “complete shift” of facts or an “elaboration” on the original claim is a question of fact for the jury. Notably, it is also undisputed that the photograph that Plaintiff submitted with her original claim is the same wide-angle image that Defendant itself marked as Deposition Exhibit 3, that is, the same exhibit that Plaintiff circled to identify the location of her fall. (Plaintiff’s UF #13.) This creates an inference that Defendant possessed a photograph of the alleged fall location and negates Defendant’s argument that it was deprived of the opportunity to investigate. Whether Plaintiff’s claim constitutes substantial compliance is a question of fact for the jury. The court should deny the motion.

In the alternative, Plaintiff argues that Defendant waived its right to challenge the sufficiency of the claim by failing to send a Notice of Insufficiency.

If a public entity determines that a claim fails to comply with the claims requirements, it must give written notice of the claim’s insufficiency, “stating with particularity the defects or omissions therein.” (Gov. Code, § 910.8.) “Any defense as to the sufficiency of the claim based upon a defect or omission in the claim as presented is waived by failure to give notice of insufficiency...” (Gov. Code, § 911.)

Here, it is undisputed that Plaintiff submitted a claim identifying the date and location of the incident and describing the condition. (UF#1, 2, 4.) It is also undisputed that Defendant never served Plaintiff with a Notice of Insufficiency. (Plaintiff’s UF # 11.) Since Defendant never sent such a notice, it creates a triable issue of fact as to whether Defendant waived its right to challenge the sufficiency of the claim’s description of the location or condition. (See *Simms v. Bear Valley Community Healthcare District* (2022) 80 Cal.App.5th 391, 401 [“If the public entity fails to send this notice, it *waives* any defenses as to the sufficiency of the claim based upon a defect or omission.”].)

A triable issue of fact also exists as to whether Defendant was actually prejudiced by the variance of wordings. In *Johnson v. City of Oakland* (1961) 188

Cal.App.2d 181, the court agreed that “whether or not giving the incorrect address misled or prejudiced the [Defendant]... is a triable issue of fact,” and that the granting of the summary judgment is improper. (*Johnson v. City of Oakland* (1961) 188 Cal.App.2d 181, 182-83.)

In sum, triable issues exist as to whether Plaintiff substantially complied with the Government Claims Act, whether Defendant waived its defense, and whether Defendant was misled or suffered any prejudice by the pleading variance. This is sufficient to defeat summary judgment.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506419	PITA VS AMERICAN HONDA MOTOR CO., INC	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling:

- **Grant the motion as to RFP nos. 1-14.**
- **Grant the motion as to RFP nos. 15-29, but limited to rules, policies, and procedures applicable to vehicles of the same year, make, and model as the Vehicle.**
- **Grant the motion as to RFP no. 30 but limited to complaints about the defects/nonconformities that Plaintiffs contend impaired the use, value, and safety or the Vehicle.**
- **Deny the motion as to RFP no. 31.**

This is a lemon law action. On November 12, 2025, Plaintiffs Zoila Villegas Pita and Richard Kave (“Plaintiffs”) filed a Complaint against Defendant American Honda Motor Co., Inc. (“Defendant”) for (1) breach of express warranty in violation of the Song Beverly Act; (2) breach of implied warranty in violation of the Song Beverly Act; and (3) violation of section 1793.2 of the Song Beverly Act. In the Complaint, Plaintiffs allege that on March 16, 2024, they purchased a 2024 Honda Pilot (the “Vehicle”), on which Defendant issued a written warranty. (Complaint at ¶¶ 8-9, 20.) The Vehicle was delivered to Plaintiffs with defects to the engine, electrical emission, structural, and steering systems that impaired the use, value, and safety of the Vehicle. (Complaint at ¶¶ 10, 21, 25.) Plaintiffs brought the Vehicle to Defendant for repairs, and Defendant could not conform the Vehicle to the warranty within a reasonable number of attempts. (Complaint at ¶¶ 11-13, 26-27.)